SPECIAL TOWN MEETING WARRANT

November 3, 2026
STATE OF MAINE
COUNTY OF YORK, ss.

To: Marianne Goodine, Michele Stivaletta-Noble, Keeley Lambert, and/or Mike Livingston, residents of the Town of Wells, County of York, and State of Maine;

GREETINGS:

In the name of the State of Maine, you are hereby required to notify and warn the Inhabitants of the Town of Wells, qualified by law to vote in Town affairs, to meet at the Wells Junior High School Gymnasium, 1470 Post Road, in said Town of Wells on **Tuesday, November 3, 2026 at 8:00 AM** in the forenoon and then and there to vote on Article 1 and by secret ballot to act on all remaining Articles set out below. The polling hours therefore to be from 8:00 AM in the forenoon to 8:00 PM in the evening. Pursuant to Title 21-A, Section 759(7), **absentee ballots will be processed at the polls at the following times: 9:00, 10:00, 11:00 a.m., 12:00, 1:00, 2:00, 3:00, 4:00, 5:00, 6:00, 7:00 and 8:00 p.m.**

ARTICLE 1. To elect a Moderator to preside in said meeting.

ARTICLE 2. GIVEN WEMS' CESSATION OF OPERATIONS, APPROVAL OF UP TO 14 FULL-TIME POSITIONS TO REPLACE EXISTING WEMS FULL-TIME POSITIONS AND TO STAFF THE TOWN'S NEWLY CREATED EMERGENCY MEDICAL SERVICES DEPARTMENT

Shall the Town vote to authorize the creation of up to 14 full-time positions at an estimated average cost of $99,148 per position (including benefits) commencing in FY 2028 to provide emergency medical and ambulance services, formerly provided by Wells Emergency Medical Service ("WEMS"), which has notified the Town of its intention to cease operations?

Explanation: For many years, WEMS has provided emergency medical, basic life support, and advanced life support services, as well as general ambulance services (collectively, "Emergency Medical Services") to residents and visitors in Wells. WEMS is not a Town department, it is a private not-for-profit entity that is separate and distinct from the Town. WEMS has notified the Town that it will cease operations and will no longer be providing Emergency Medical Services within the Town. Section 2.06(5) of the Town Charter empowers the Board of Selectmen to create new departments. Pursuant to this authority, the Board of Selectmen has created a new Wells Rescue Department to ensure that Emergency Medical Services will continue to be available in the Town when WEMS ceases to provide said services. While Section 2.06(5) of the Town Charter empowers the Board of Selectmen to create new departments, Section 7.08(2)(e) of the Town Charter requires Town Meeting approval for any new positions that are created. The purpose of this Article is to seek such approval. Each year, the Town Meeting has traditionally appropriated funds that make up a substantial portion of WEMS' yearly operating budget (including for personnel). The funds appropriated for WEMS' FY 2027 budget, any remaining revenues and receivables owing to WEMS, and the ambulances will be transferred to the Town when WEMS ceases operations. WEMS' budget reflects that the positions for which approval is being sought under this Article are funded through the end of the current FY 2027. Commencing

in FY 2028, funding for these new positions will, like all Town positions, be requested through the generally applicable budget process at the 2027 Annual Town Meeting, and at each annual town meeting thereafter.

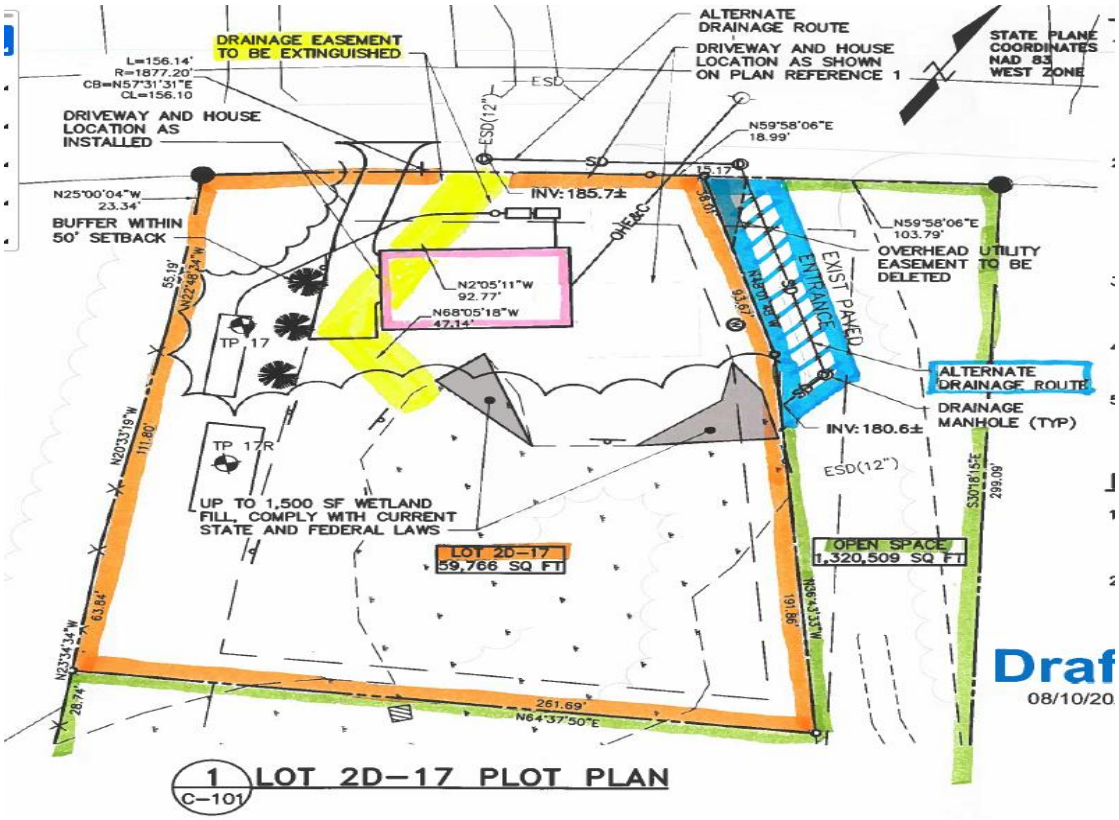
Board of Selectmen Recommends:	YES	(5 For / 0 Against)
Budget Committee Recommends:	YES	(7 For / 0 Against)

ARTICLE 3. RELOCATION OF A DRAINAGE EASEMENT ACROSS TAX MAP 37, LOT 2D-17; RELEASE OF EXISTING TOWN DRAINAGE EASEMENT ACROSS TAX MAP 37, LOT 2D-17; AND RELOCATION OF DRAINAGE EASEMENT TO THE OPEN SPACE PARCEL OF THE PERKINS PASTURE SUBDIVISION

Shall the Town vote to authorize the Board of Selectmen to: (1) release the drainage easement conveyed to the Town from Mark J. O'Brien per deed recorded at the YCRD in Book 19427, page 732 across Tax Map 37, Lot 2D-17 (the "Property"), in exchange for Make Development, LLC (c/o Mark J. O'Brien) conveying a new drainage easement across the Open Space parcel of the Perkins Pasture Subdivision; (2) require the owner of the Property to compensate the Town for any and all expenses associated with said drainage easement release, relocation, and new conveyance including, but not limited to, attorneys' fees and recording fees; and (3) take all steps necessary to negotiate, draft, execute, and record all related documents, and plans at the York County Registry of Deeds?

Explanation: The Town currently has a drainage easement over Lot 17 of the Perkins Pasture Subdivision as required by the Town's ordinances and the approved subdivision plan. A foundation for a home has been constructed on Lot 17 which encroaches across the drainage easement. The elevations allow for the drainage to be redirected to the adjacent Open Space parcel. A subdivision amendment is required to approve the change; final design of the drainage infrastructure; and easement relocation. The Open Space is owned by Make Development, LLC (c/o Mark J. O'Brien) who has agreed to convey a new drainage easement. See Exhibit below:

[REMAINDER OF PAGE LEFT INTENTIONALLY BLANK]



ARTICLE 4. Shall the Town of Wells Board of Selectmen be authorized to issue general obligation bonds and/or notes in a total principal amount not to exceed $5,500,000, which bonds and/or notes may be callable, for the purpose of providing funds to renovate, expand, and equip the existing fire station located on Log Cabin Lane, adjacent to Rt. 9, to house emergency medical and fire response personnel and equipment.

Board of Selectmen Recommends:	YES	(5 For / 0 Against)
Budget Committee Recommends:	YES	(7 For / 0 Against)

[REMAINDER OF PAGE LEFT INTENTIONALLY BLANK]

FINANCIAL STATEMENT

Outstanding, Unpaid, and Authorized Debt

The following is a summary of the bonded indebtedness of the Town of Wells as of the date of this referendum:

Bonds Outstanding and Unpaid	$11,825,000.00
Interest to be Repaid on Outstanding Bonds:	$2,144,106.25
Total to be Repaid on Bonds Outstanding:	$13,969,106.25

Principal Amount of Bonds Authorized but Unissued:	$0.00

Project Description and Estimated Costs if Project Receives Voter Approval

This project will renovate, expand, and equip the existing fire station located on Log Cabin Lane, adjacent to Rt. 9, to house emergency medical and fire response personnel and equipment. The following is a summary of the estimated costs involved, at an assumed rate of 4.00% and a bond principal repayment schedule of 30 years.

Bond Principal Amount to Be Issued if Approved:	$5,500,000
Estimated Cost of Interest if Approved:	$3,410,000
Total Estimated Cost if Approved:	$8,910,000

Bonding Limit

The bonding limit of the Town is set forth in 30-A M.R.S. Section 5702, which provides: “No municipality may incur debt which would cause its total debt outstanding at any time, exclusive of debt incurred for school purposes, for storm or sanitary sewer purposes, for energy facility purposes or for municipal airport purposes to exceed 7 1/2% of its last full state valuation, or any lower percentage or amount that a municipality may set. A municipality may incur debt for school purposes to an amount outstanding at any time not exceeding 10% of its last full state valuation, or any lower percentage or amount that a municipality may set, for storm or sanitary sewer purposes to an amount outstanding at any time not exceeding 7 1/2% of its last full state valuation, or any lower percentage or amount that a municipality may set, and for municipal airport and special district purposes to an amount outstanding at any time not exceeding 3% of its last full state valuation, or any lower percentage or amount that a municipality may set; provided, however, that in no event may any municipality incur debt which would cause its total debt outstanding at any time to

exceed 15% of its last full state valuation, or any lower percentage or amount that a municipality may set. For the purposes of this section, full state valuation shall mean the state valuation most recently certified by the State Tax Assessor pursuant to Title 36, section 381, adjusted to 100%." The 2026 State Valuation of the Town is $6,939,150,000.

Note as to Estimates and Validity

When money is borrowed by issuing bonds, the Town must repay not only the principal amount of the bonds but also interest on the bonds. The amount of interest to be paid will vary depending upon the rate of interest and the years to maturity at the time of issue. The validity of the bonds and of the voters' ratification of the bonds may not be affected by any errors in the estimates made of the costs involved, including varying interest rates, the estimated cost of interest on the bond amount to be issued and the total cost of principal and interest to be paid at maturity. If the actual amount of the total debt service for the bonds varies from the estimate, the ratification by the voters is nevertheless conclusive and the validity of the bonds is not affected by reason of the variance.

Jackie Sanborn

Jackie Sanborn, Treasurer, Town of Wells

ARTICLE 5. Shall an ordinance entitled, "An Ordinance to Establish a Retroactive Moratorium on Data Centers" be enacted?

Board of Selectmen Recommends:	YES	(5 For / 0 Against)
Planning Board Recommends:	YES	(7 For / 0 Against)

A copy of the ordinance is posted together with this warrant as Appendix 1 and is hereby incorporated by reference.

ARTICLE 6. Shall an ordinance entitled, "An Ordinance to Stabilize Mobile Home Park Lot Rents" be enacted?

A copy of the ordinance is posted together with this warrant as Appendix 2 and is hereby incorporated by reference.

Given under our hands this 15th day of September 2026.

BOARD OF SELECTMEN OF THE TOWN OF WELLS:

_____	_____
Timothy Roche	John MacLeod III
_____	_____
Kathleen Chase	Avery Seuter
_____	
James N. Smith	

A True Copy, ATTEST:

_____
Town Clerk

APPENDIX 1

TOWN OF WELLS ORDINANCE TO ESTABLISH A RETROACTIVE MORATORIUM ON DATA CENTERS

The Town of Wells hereby ordains and enacts "An Ordinance to Establish a Retroactive Moratorium on Data Centers" to read as follows:

Section 1. Title; Authority.

This ordinance, duly enacted by the legislative body of the Town of Wells (the "Municipality") is referred to herein as the "Moratorium Ordinance." This Moratorium Ordinance is adopted pursuant to the Municipality's home rule authority pursuant to Article VIII, Part Second, of the Maine Constitution and 30-A M.R.S.A. § 3001; 30-A M.R.S.A. § 4356; and any other enabling statutes and laws.

Section 2. Necessity.

The Municipality makes the following findings:

A. There is increasing interest within or surrounding the Municipality in the siting and development of large-scale data center facilities used for the processing, storage, and transmission of vast amounts of digital data, which rely on extensive equipment, systems, and environmental controls to maintain suitable conditions for their operations ("Data Centers").

B. Such Data Centers are on a scale larger than previously contemplated by the Municipality or the State, and there is a strong likelihood of continued development pressure for Data Centers, including within and surrounding the Municipality, due to regional and national demand.

C. The Municipality's comprehensive plan, ordinances, regulations, and policies are inadequate to prevent serious public harm that could result from the siting, installation, operation, and decommissioning of Data Centers within the Municipality.

D. In particular, without appropriate local regulation, the siting, installation, operation, and decommissioning of Data Centers within the Municipality raise legitimate and substantial questions about the impact of such facilities on the Municipality, including but not limited to:

(i) Whether Data Centers are compatible with existing and permitted land uses within the Municipality;

(ii) Whether Data Centers can be appropriately located and regulated to avoid or minimize potential adverse impacts from the noise, heat, emissions, and other

nuisance conditions that may be associated with Data Centers and their extensive machinery, systems, and environmental controls;

(iii) Whether Data Centers can be located to avoid or minimize adverse environmental effects and visual impacts;

(iv) Whether Data Centers will result in a shortage or overburdening of public facilities including local water supplies, roads, waste management systems, and other public infrastructure;

(v) Whether existing regulatory and financial assurances, if any, are adequate to ensure that such development will be properly sited, constructed, operated, and decommissioned; and

(v) Whether excessive land and water resources will be devoted to this emerging use to the detriment of surrounding properties, natural resources, and other existing and permitted uses.

E. As a result, the siting, installation, operation, and decommissioning of Data Centers within the Municipality has the potential to overburden public facilities and poses a serious threat to the health, safety, and welfare of the Municipality and its residents and visitors.

F. The Municipality needs time to evaluate the impacts of and prepare reasonable ordinances and regulations governing the siting, installation, operation, and decommissioning of Data Centers within the Municipality.

G. The Municipality, with assistance from its municipal reviewing authority and other departments, intends to study its plans, ordinances, regulations, and policies to determine the effects of siting, installing, operating, and decommissioning Data Centers within the Town and to consider what additional or different ordinance provisions and regulations, if any, are appropriate for such development.

H. It is anticipated that such study, review, and preparation of plans, ordinances, regulations, and policies could take 180 days from the Date of Applicability of this Moratorium Ordinance.

Section 3. Definitions.

As used in this Moratorium Ordinance, the following term has the following meaning:

A. "Data Center" means any building, structure, facility, equipment, or portion or combination thereof, that (1) is primarily designed, constructed, operated, or occupied for the processing, storage, management, mining, hosting, or distribution of large loads of digital data, artificial intelligence operations, blockchain operations, cryptocurrency mining, cloud computing, colocation services, enterprise services, or similar high-intensity computational activities; and (2) has an aggregate Data Center

Area of 100,000 square feet or greater. The term "Data Center" includes but is not limited to hyperscale data centers, enterprise data centers, colocation facilities, edge computing facilities, artificial intelligence computing facilities, and cryptocurrency mining operations, whether operated as a principal use or accessory use.

B. "Data Center Area" means the gross floor area occupied by (1) any building, structure, facility, equipment, or portion or combination thereof, that contains the physical computing equipment comprising a Data Center, including but not limited to routers, graphics processing units (GPUs), switches, servers, high-density computing systems, storage systems, and other electronic and computing equipment; the physical infrastructure housing such equipment, such as data center racks and server cabinets; and any inter-equipment space and corridors used for cooling and maintenance of the physical computing equipment; and (2) any other impervious surfaces associated with a Data Center, including but not limited to access ways, parking lots, transmission corridors, and any accessory buildings or structures.

Section 4. Moratorium.

The Municipality does hereby declare a moratorium on (i) the siting, installation, construction, establishment, or operation of any Data Center, or the expansion of any existing facility or operation so as to render it a Data Center; (ii) the acceptance of, processing of, or acting upon any application, proposal, petition, or request pending on or after the Date of Applicability for any new or expanded Data Center; and (iii) the issuance of any development permit, license, or other regulatory approval or any other action or decision of a board, officer, official, employee, agent or department of the Municipality (including but not limited to a building permit, certificate of occupancy, site plan review, conditional use, or business license) related to any new or expanded Data Center ("Moratorium").

Section 5. Retroactive Application; Duration.

This Moratorium Ordinance is expressly intended to and shall have retroactive effect. Notwithstanding 1 M.R.S.A. § 302 or any other law to the contrary, and regardless of its effective date, this Moratorium Ordinance shall govern and apply to all proceedings and applications for Data Centers that were or are pending before the Town at any time on or after June 16, 2026 (the "Date of Applicability") and, to the extent allowed by 30-A M.R.S.A. § 3007(6), shall nullify any final permit, license, or other approval of a new or expanded Data Center issued by a municipal reviewing authority within 45 days of the effective date.

This Moratorium shall remain in full force and effect for a period of 180 days from the Date of Applicability, unless extended, repealed, or modified in accordance with applicable law.

Section 6. Enforcement, Violations and Penalties.

This Moratorium Ordinance shall be enforced by the Code Enforcement Officer of the Municipality. Any person who violates any provision of this Moratorium Ordinance shall be subject to civil penalties and other remedies as provided in 30-A M.R.S.A. § 4452.

Section 7. Conflicts; Severability.

Any provisions of the Municipality's ordinances that are inconsistent with or conflict with the provisions of this Moratorium Ordinance are hereby repealed to the extent applicable for the duration of the Moratorium. Should any section or provision of this Ordinance be declared by any court of competent jurisdiction to be invalid, such a decision shall not invalidate any other section or provision.

Section 8. Effective Date.

This Ordinance shall take effect immediately upon enactment by the Town Meeting, per Section 2.13(3) of the Town Charter.

APPENDIX 2

An Ordinance to Stabilize Mobile Home Park Lot Rents

The Town of Wells hereby ordains and enacts "An Ordinance to Stabilize Mobile Home Park Lot Rents" to read as follows:

Article 1: Purpose

The purpose of this ordinance is to protect the health, safety, and welfare of residents living in Mobile Home Parks by preventing unreasonable lot rent and fee increases. Mobile Homes represent a crucial source of unsubsidized affordable housing. However, because residents typically own their homes but not the land underneath them, they face unique vulnerabilities to excessive rent and fee increases. While Mobile Home Park Owners should expect to receive a reasonable return on their investment, residents of those parks should expect to be protected from such excessive cost increases because they may put residents at risk of homelessness or severe housing insecurity.

Article II. Definitions

Administrator: "Administrator" means the Town Manager for the administration and enforcement of this Mobile Home Park rent stabilization ordinance.

Affordability Threshold: Forty percent (40%) of the median monthly Social Security income for York County, Maine, as determined annually by the Administrator and as further described in Article IV and Exhibit B.

Base Rent: The monthly rent charged for a Mobile Home Park lot, exclusive of utilities and separately metered services, in effect for that lot at the time of determination. Base Rent shall be used to determine applicability of affordability thresholds and rent increase provisions.

Consumer Price Index (CPI): "Consumer Price Index" or "CPI" means the Consumer Price Index for All Urban Consumers (CPI-W), Northeast Region as published by the U.S. Department of Labor, Bureau of Labor Statistics.

Mobile Home: "Mobile Home" means a structure, transportable in one or more sections, which is 8 body feet or more in width and 32 body feet or more in length, is built on a permanent chassis, is designed to be used as a dwelling with or without a permanent foundation when connected to the required utilities, and includes the plumbing, heating, air conditioning and electrical systems contained in the structure.

Mobile Home Park: "Mobile Home Park" means any parcel(s) of land under single or common ownership or control which contains, or is designed, laid out or adapted to accommodate, two or more Mobile Homes.

Mobile Home Park Lot: "Mobile Home Park Lot" means the area of land on which an

individual Mobile Home is situated within a Mobile Home Park, and which is reserved for use by the occupants of that home.

Mobile Home Resident: “Mobile Home Resident” means an occupant of a Mobile Home who rents a parcel of land in a Mobile Home Park.

Operating Expenses: Annual expenses reasonably incurred by the Park Owner directly related to the operation of the Mobile Home Park, including but not limited to:

- Real estate and personal property taxes
- Utilities
- Maintenance and repair
- Local administrative and payroll costs directly related to the operation and administration of the park
- Insurance
- Capital improvements (amortized)
- Interest expenses related to acquisition or capital improvements

Park Owner: “Park Owner” means a person, corporation or other entity that owns a Mobile Home Park.

Reasonable Rate of Return: A rate of return on investment and operation that provides a Mobile Home Park Owner with a fair and reasonable opportunity to recover operating expenses, maintenance costs, capital improvements, debt service, taxes, insurance, utilities, and other legitimate costs of ownership and operation, together with a reasonable profit, while balancing the purpose of this Ordinance to protect residents from excessive, unreasonable, or destabilizing lot rent increases.

Rent Increase: “Rent Increase” means any additional lot rent or fees demanded of, or paid by, a Mobile Home resident, and includes any reduction in services without a corresponding reduction in the amount demanded or paid for in lot rent or fees.

Rent Stabilization Board: “Rent Stabilization Board” (“Board”) means the municipal body appointed to hear and decide petitions for additional rent increases and other matters.

Article III. Lot Rent and Fee Regulation

A. Frequency of Increases

A Park Owner may not increase lot rent or fees more than once in any twelve (12) month period.

B. Base Rent Determination

Base Rent shall be the rent in effect at the time of evaluation.

C. Notice Requirements:

A Park Owner shall provide at least ninety (90) days’ written notice of any rent or fee increase.

D. Rent or Fee Increase Not Requiring a Hearing

A Park Owner may implement a rent or fee increase without a hearing before the Rent Stabilization Board if:

1. The lot rent is at or below the Affordability Threshold (see Exhibit B);
2. The increase does not exceed the most recent annual percentage change in the Consumer Price Index (CPI-W) plus 1%; and
3. The increase occurs no more than once in a twelve (12) month period.

Presumption of Reasonableness: An increase within the limits of this subsection shall be presumed reasonable.

E. Rent or Fee Increase Requiring a Hearing

A rent or fee increase shall require review and approval by the Rent Stabilization Board if:

1. The lot rent exceeds the Affordability Threshold; or
2. The proposed increase exceeds the limits set forth in Article III(D); or
3. The Park Owner seeks to impose new or increased fees not otherwise permitted.

The Rent Stabilization Board shall approve, deny, or modify the requested increase in a manner that ensures the Park Owner is able to obtain a reasonable rate of return based on the evidence presented.

F. Petition

A Park Owner may seek a Rent or Fee increase that exceeds the thresholds above to cover the cost of increased operating expenses such as taxes, insurance, utility charges and maintenance costs. In addition, certain capital improvements or other emergencies may be considered. These costs however, if substantial, should only be considered to the extent of one year's depreciation or amortization of the costs incurred. Improvements must directly benefit Mobile Home Residents and be necessary for maintenance of the correction of health and safety conditions in the Mobile Home Park

A Park Owner seeking such greater increase must submit a petition to the Town Clerk's Office. The Town Clerk's Office shall forward the petition to the Board and schedule a hearing, pursuant to Article VI (C). The petition must be filed in advance of the rent or fee increase notice and contain documentation to substantiate the increase is necessary to cover the increases in operating or maintenance expenses, the cost of capital improvements, or unforeseeable expenses incurred at the Mobile Home Park. Park Owners that fail to maintain a Mobile Home Park in decent, safe, sanitary condition, as determined by the Code Enforcement Office, shall not be allowed to exceed the base rent increase, unless the increase is used to correct health and safety violations in the Mobile Home Park.

G. Standard for Approval

The Board may approve an increase only upon a finding that:

1. The increase is necessary to:
    a. Address health and safety conditions;

b. Fund capital improvements essential to the operation of the park to the extent of one year's depreciation or amortization of such improvements
c. Cover increased operating expenses; or
d. Reflect enhanced services;

AND

2. The increase is limited to the amount required to provide a reasonable rate of return.

H. Burden of Proof
The Park Owner shall bear the burden of proof.

I. Reasonable Rate of Return
The Park Owner is entitled to a reasonable rate of return. After considering all of the evidence provided by the Park Owner and Mobile Home Residents, the Board will determine the amount of the requested increase in rent or fees that provides a reasonable rate of return.

J. Notice to Mobile Home Residents
The Park Owner will promptly provide a copy of the filing of the petition and supporting documents to the Mobile Home Residents and will file proof of said notice to the Board. The Park Owner will also provide notice of the hearing date, time and location to the Mobile Home Residents and will file proof of said notice to the Board.

K. Vacancy Base Rent
A Park Owner shall be permitted to increase the lot rent by up to the most recently posted CPI-W increase whenever a lawful vacancy occurs, and this amount shall be considered the new base rent for that Mobile Home Park Lot.

L. Application, Screening, and Other Non–Lot Rent Fees

1. State Law Compliance Required
Any application fee, credit check fee, background check fee, or similar screening-related charge imposed by a Park Owner shall comply with the requirements of Maine Revised Statutes Title 10 M.R.S. § 9093-A, as may be amended.

2. Limitation to Actual Cost
Such fees shall be strictly limited to the actual, verifiable cost incurred by the Park Owner in obtaining a credit report, background check, or similar screening service.

No additional administrative, processing, or profit-based charges shall be permitted.

If no screening report is obtained, no fee shall be charged.

3. Documentation Requirement
Upon request by the Administrator, Rent Stabilization Board, or an affected applicant or resident, the Park Owner shall provide written documentation demonstrating:

a. The actual cost of the screening service; and
b. That the fee charged does not exceed that cost.

4. Prohibition on Excessive or Barrier Fees
No fee shall be imposed that:

a. Exceeds the actual cost of screening services;
b. Is duplicative or charged multiple times for the same screening purpose; or
c. Functions as a barrier to entry for prospective residents inconsistent with the purpose of this Ordinanance.

5. Anti-Circumvention
Application, screening, or other non–lot rent fees shall not be used to:

a. Circumvent the rent or fee limitations established in this Ordinance; or
b. Shift housing costs from regulated lot rent into unregulated charges.

6. Board Authority
The Rent Stabilization Board shall have the authority, in connection with any petition under Article III(E), to:
a. Review all non–lot rent fees;
b. Determine whether such fees comply with this Ordinance and State law; and
c. Disallow, reduce, or otherwise adjust any fee found to be excessive, non-compliant, or inconsistent with the purpose of this Ordinance.

Article IV. Affordability-Based Rent Regulation

A. Affordability Threshold
The Affordability Threshold is Forty percent (40%) of the median monthly Social Security income for York County, Maine, as determined annually by the Administrator.

B. Classification

1. Each lot shall be classified as:

a. Above-Threshold Lot Rent, or
b. At-or-Below-Threshold Lot Rent

2. Above-Threshold Rents

a. Notwithstanding the provisions in Article III, a Park Owner must file a petition for any Lot Rent increase;
b. Any increase will be subject to review by the Rent Stabilization Board under Article III(E);

c. Any such petition shall be evaluated in accordance with Exhibit A and the requirement to provide a reasonable rate of return.

3. At-or-Below-Threshold Rents

a. Subject to the CPI-W plus 1%.

b. May petition Board for greater increase pursuant to Article III(E).

C. Annual Determination

The Administrator shall annually determine and publish on the Town's website:

1. Median Social Security income for York County, Maine;
2. Applicable Affordability Threshold Monthly Lot Rents

Article V. Applicability

A. Applicability: This ordinance applies to every Mobile Home Park within the municipality except those to which an exemption applies.

B. Exemptions: This ordinance shall not apply to:

1. Mobile Home Parks owned by a cooperative or other entity in which membership is limited to Mobile Home residents; or
2. Mobile Home lots subject to any agreement that restricts lot rent or fee increases in a manner that is more restrictive than this ordinance.

ARTICLE VI. Rent Stabilization Board

A. A Rent Stabilization Board ("Board") is created to hear requests by Park Owners for lot rental and fee increases pursuant to Article III and explicitly those above threshold.

B. The Board will be composed of five members with initial terms ending on December 31, of one year for one; two years for two; and three years for two. Thereafter, terms will be for three years. Members will be appointed by the Select Board from residents of the Town of Wells who volunteer to serve. No member shall be a representative of Mobile Home Park ownership or management, or a resident of a mobile home park, or have a conflict of interest from any relationship with either ownership, management, or residents of a mobile home park.

C. At its organizational meeting, the Board will elect a Chair and Secretary. Thereafter, each January the Board will elect a Chair and Secretary. In the absence of the Chair, the Board will appoint a temporary Chair. The Board may request secretarial assistance from the Town to assist in the performance of its duties.

ARTICLE VII. Hearings

A. A Quorum is a minimum of four members, and decisions will be made by a majority of Board, four members present and voting.

B. Decisions will be made by a preponderance of the evidence, and the Park Owner will have the burden of proof to establish the amount of a rent or fee increase that is a reasonable rate of return.

C. Standards for Evaluation of Rent Increases are established and attached as Exhibit A; Rent Stabilization Board Evaluation Standards.

D. Hearings will begin within 30 days of receipt of a petition for a rent or fee increase and will conclude within 30 days thereafter, unless the Board extends the time for good cause.

E. The Board may receive any oral or documentary evidence but shall exclude irrelevant, immaterial or unduly repetitive evidence. Every party has the right to present the party's case by oral or documentary evidence, to submit rebuttal evidence, and to conduct any cross-examination that is required for a full and true disclosure of the facts.

F. Upon the conclusion of the evidence, the Board will make its decision, which will be supported by Findings of Fact and Conclusions of Law and provided to the parties within 7 business days.

G. A motion for reconsideration must be made within ten days of the decision being reconsidered. A decision on a motion for reconsideration must be made within 45 days of the final vote on the original decision.

ARTICLE VIII. Violations

Violations of this Ordinance shall be enforced by a municipal official designated by this article with the responsibility to enforce this article pursuant to 30-A M.R.S. § 4452. Each lot where a violation occurs shall be considered a separate violation subject to fines and penalties.

ARTICLE IX. Appeals

A. An appeal of the Board's decision must be made to Superior Court within 45 days of the vote on the original decision.

B. An appeal of a decision on a motion for reconsideration must be made to Superior Court within 10 days of the decision on the motion for reconsideration.

Exhibit A
Rent Stabilization Board Evaluation Standards

Section A. Purpose

This Exhibit establishes uniform standards and procedures for the evaluation of petitions for rent or fee increases submitted to the Rent Stabilization Board pursuant to Article III(E).

These standards are intended to:

- Ensure consistent, transparent, and evidence-based decision-making;
- Protect residents from unreasonable rent increases;
- Ensure that Park Owners are able to obtain a reasonable rate of return.

This Exhibit further establishes a structured methodology for determining a Reasonable Rate of Return using market-based and financial analysis standards.

Section B. Required Financial Submissions

A Park Owner filing a petition shall submit the following:

1. Gross Income:

a. Total rental income for the prior three (3) years
b. Current rent roll by lot
c. All additional revenue sources shall be itemized separately, including but not limited to application fees, credit check fees, background screening fees, administrative fees, and any other non–lot rent charges, shall be itemized separately.
d. Each such fee category shall include:
    1. Total annual revenue collected;
    2. Number of instances charged; and
    3. Documentation demonstrating compliance with Article III(I) and applicable State law.

2. Operating Expenses

a. Detailed operating expenses for the prior three (3) years
b. Current year-to-date expenses
c. Itemized categories consistent with ordinance definitions

3. Net Operating Income

a. Calculation of annual net operating income for the prior three (3) years
b. Capital Improvements
c. Description, cost, and date of improvements over the past five (5) years
d. Depreciation and Amortization schedules
e. Interest and other investment income for the past five (5) years

4. Distributions Distributions to Investors for the last five (5)

5. Debt and Financing

a. Outstanding debt obligations

b. Interest expenses

6. Certification: All submitted information shall be certified as accurate. The Board may require independent verification.

Section C. Expense Eligibility Standards

A. Allowable Expenses

The following may be considered:

1. Property taxes
2. Utilities
3. Maintenance and repairs
4. Administrative and payroll expenses incurred locally
5. Insurance
6. Regulatory fees and permits
7. Capital improvements (amortized)
8. Interest on acquisition and improvements (subject to limitations below)

B. Non-Allowable Expenses

1. Depreciation in property values
2. Late fees, penalties, or default-related costs
3. Costs unrelated to park operations
4. Duplicate or double-counted expenses
5. Costs arising from over-leveraged or imprudent financing

Section D. Capital Improvement Standards

A. Eligibility Criteria

Capital improvements must:

1. Extend useful life;
2. Improve safety or infrastructure; or
3. Enhance services

B. Depreciation and Amortization must follow generally accepted accounting principles

C. Exclusions

1. Routine maintenance
2. Previously recovered costs

Section E. Reasonable Rate of Return Analysis

The Board shall determine whether the requested increase is necessary to provide a Reasonable Rate of Return using a hybrid analysis consisting of the following:

A. Net Operating Income (NOI) Analysis

1. Evaluate historical and current NOI;
2. Assess trends in income and expenses;
3. Determine whether current rent levels support ongoing operations and maintenance.

B. Market-Based Capitalization Rate Analysis

1. Identify an appropriate capitalization rate based on manufactured housing communities in Maine, Northern New England, or comparable markets;
2. Estimate implied property value using NOI ÷ cap rate;
3. Evaluate whether current and proposed returns are consistent with market performance.

C. Cash Flow Sufficiency Analysis

1. Determine whether income supports Operating expenses, Capital reinvestment; and Long-term Viability.
2. Ensure the property can be maintained in a safe and habitable condition.

D. Standards

1. The Board shall ensure the Owner is not deprived of a fair and reasonable return;
2. The Board shall not guarantee profit maximization;
3. The Board shall rely on objective financial and market data

E. Limitations

The Board shall not base return on:

1. Speculative acquisition prices;
2. Overleveraged financing;
3. Owner-specific financial hardship unrelated to operations.

Section F. Decision Criteria

A. The Board shall consider:

1. Changes in property taxes
2. Changes in operating expenses
3. Capital improvement needs
4. Changes in services
5. Whether the increase is:
    - Arbitrary
    - Discriminatory
    - Inconsistent with the ordinance
6. Impact on resident affordability
7. Long-term viability of the park

B. The Board shall issue written findings documenting:

1. Data relied upon;

2. Methodology applied;
3. Determination of reasonable rate of return.

Section G. Anti-Abuse Provisions

Fees may not be used to circumvent rent limits.

Service reductions must be offset by rent reductions.

No discriminatory rent practices.

Good faith engagement with residents is required.

Incomplete submissions may be denied.

Section H. Non–Lot Rent Fee Standards

A. General Standard

All non–lot rent fees shall be:

1. Reasonable;
2. Cost-based; and
3. Consistent with the purpose of this Ordinance.

B. Application and Screening Fees

The Board shall ensure that any application, credit check, or background screening fee:

1. Complies with Article III(I);
2. Does not exceed actual, verifiable cost; and
3. Is not used as a revenue-generating mechanism.

C. Exclusion from Return Calculations

Revenue derived from any fee found to be:

1. Excessive,
2. Non-compliant with State law, or
3. In violation of Article III(I)

shall be excluded from Gross Income and Net Operating Income calculations for purposes of determining a reasonable rate of return**.**

D. Corrective Action

Where the Board determines that non–lot rent fees are inconsistent with this Ordinance, the Board may:

1. Disallow such fees in whole or in part;
2. Require adjustment or elimination of such fees; and
3. Condition approval of any rent increase on compliance with this Section.

Exhibit B
Information for the Year 2026

A. Consumer Price Index for All Urban Consumers (CPI-W)

2026 CPI-W Adjustment Notice – 2.8%
Pursuant to Article III of the Town of Wells Mobile Home Park Lot Rent Stabilization Ordinance, The Town of Wells hereby establishes the annual CPI-W adjustment for calendar year 2026 at 2.8%, consistent with the Social Security Cost-of Living Adjustment (COLA) calculated from the year-over-year change in the average Consumer Price Index for Urban Wage Earners and Clerical Workers (CPI-W) for the third quarter of 2024 through the third quarter of 2025.

B. Social Security Income - $1,800/mo.

Median Social Security Income – York County, Maine (2025/2026 CPI-W Implementation Period)

For purposes of implementation of the Town of Wells Mobile Home Park Lot Rent Stabilization Ordinance, the Town of Wells recognizes the estimated median monthly Social Security retirement income for residents within York County, Maine, during the 2025/2026 CPI-W adjustment period to be approximately **$1,800 per month**, or approximately **$21,600** annually.

This figure is derived from publicly available Social Security benefit data for the State of Maine, including statewide median retirement benefit information published by national retirement and Social Security research organizations utilizing Social Security Administration datasets. Recent published Maine median retirement benefit levels ranged from approximately $1,741 to $1,809 per month during the applicable 2025 reporting period.

Because county-level median Social Security retirement benefit data is not directly published by the Social Security Administration, the Town utilized Maine statewide median benefit data as the closest reliable proxy for York County residents given York County’s demographic and income characteristics.

This median income reference is published solely for informational and policy implementation purposes to assist in evaluating housing affordability impacts, inflation-adjusted resident income levels, and the relationship between CPI-adjustments and the financial capacity of residents living on fixed retirement incomes under the Ordinance.

C. Annual Determination of Affordability Threshold

Affordability Threshold Monthly Lot Rent – 2026 Year

Pursuant to Article IV(A) and Article IV(C) of the Wells Mobile Home Park Lot Rent Stabilization Ordinance, the Administrator hereby establishes the 2026 Affordability Threshold Monthly Lot Rent at **$720 per month.**

This threshold was calculated by determining forty percent (40%) of the estimated median monthly Social Security retirement income for York County, Maine.

The Town utilized an estimated median monthly Social Security income of approximately $1,800 per month, derived from publicly available Social Security retirement benefit data for the State of Maine during the applicable 2025/2026 CPI-W implementation period. Because county-specific median Social Security income data is not directly published by the Social Security Administration, statewide Maine median benefit information was used as the closest reliable proxy for York County residents.

Calculation of Affordability Threshold:

- Estimated Median Monthly Social Security Income: **$1,800**
- Affordability Threshold Percentage: **40%**
- Calculation: **$1,800 × 0.40 = $720**

Accordingly, the Affordability Threshold Monthly Lot Rent for implementation of the Ordinance during calendar year 2026 is established at **$720 per month.**

Effective Date:

This Ordinance shall become effective upon adoption by the Town Meeting, pursuant to Section 2.13(3) of the Town Charter.